

Finally, Defendants’ argument that a court does not consider the validity of the proposed amended pleading on a motion for leave is overstated. A court of course has discretion to deny leave to amend where a proposed amendment fails to state a legally valid cause of action or defense. (*Cal. Casualty Gen. Ins. Co. v. Sup. Ct.* (1985) 173 Cal.App.3d 274, 280-81.) Such denial is most appropriate where the pleading is deficient as a matter of law and the defect could not be cured by further appropriate amendment. (*Ibid.*) Here, for the reasons discussed above, it appears to the Court that Defendants’ claims against BAC are deficient as a matter of law and that the defect cannot be cured by amendment.

Based on the foregoing, as well as the fact that trial in this matter is only 3.5 months away, and the case has been continued multiple times, the motion is DENIED.

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Mark Andrews v. Richard Rockwell et al

24CV000304

DEFENDANT ENTERPRISE RENT-A-CAR CO. OF SAN FRANCISCO, LLC’S MOTION
TO STRIKE THE FIRST AMENDED COMPLAINT AND DEMURRER

TENTATIVE RULING: The matter is CONTINUED to July 22, 2026, at 8:30 a.m. in Dept. A.

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Colt Builders Corp. v. Russell Square Consulting, Inc. et al

25CV000412

[1] PLAINTIFF’S MOTION TO COMPEL RESPONSES TO REQUESTS FOR
ADMISSION BY JSP AMERICAN CANYON LLC; REQUEST FOR MONETARY
SANCTIONS

TENTATIVE RULING: The motion is DENIED. The parties’ respective requests for sanctions are DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Colt Builders Corp. (“Plaintiff”) moves, pursuant to Code of Civil Procedure sections 2033.220, subdivision (a), and 2033.290, subdivision (d),³ for an order compelling Defendant JSP American Canyon LLC (“JSP”) to serve verified responses to Plaintiff’s Requests

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

for Admission (“RFA”), without preliminary or boilerplate objections. In addition, Plaintiff seeks an award of monetary sanctions in the amount of \$2,580 plus \$60 court costs against JSP and its counsel, jointly and severally, for their failure to provide code compliant responses to the discovery requests, and lack of good faith thereon.

The motion is DENIED as to RFA Nos. 1-2 and 4-9 on the ground that the motion is untimely. Unless extended by written agreement of the parties, the deadline for a motion to compel further responses is 45 days from the service of the verified responses. (§ 2033.290, subd. (c).) The discovery responses were served March 10, 2026. (See Declaration of James G. Higgins (“Higgins Decl.”), ¶ 5.) Thus, the deadline to move to compel a further response thereon was April 28, 2026. (§ 2033.290, subd. (c); 1010.6, subd. (a)(3)(B).) Plaintiff’s counsel’s contention in Reply that “JSP never stated, nor was it my understanding, that there was an earlier deadline of April 28, 2026 to move to compel” does not eliminate the statutory deadline. (Reply Declaration of James G. Higgins (“Reply Higgins Decl.”), ¶ 2.)

The evidence submitted by the parties makes clear that JSP granted an extension of the deadline to move to compel only as to RFA Nos. 3-4. (Higgins Decl., ¶ 6, Exh. C (PDF p. 28); Declaration of Alexander (A.J.) Pinto (“Pinto Decl.”), ¶ 3-4.) The Court recognizes that the parties were engaged in meet and confer communications at the time the original deadline came and went. However, that fact does not obviate the statutory deadline. Counsel are tasked with seeking a written extension agreement and complying with statutory deadlines if no agreement is reached. The Court acknowledges Plaintiff’s purported confusion regarding the scope of the granted extension, and further notes that the grant of extension occurred two days after the original deadline already passed. However, as noted, the scope is clear to the Court based on the parties’ email correspondence. Plaintiff fails to state or show when it requested the extension, or the precise discovery requests contained with its extension request to support Plaintiff’s counsel’s belief that JSP’s grant of extension was to “all open discovery requests.” (Reply Higgins Decl., ¶ 2.)

The present motion was filed June 11, 2026 without a written agreement extending the statutory deadline from April 28, 2026 for RFA Nos. 1-2 and 4-9. Thus, the motion as to those RFAs is DENIED. (*Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)* (1983) 147 Cal.App.3d 681, 685 [court lacks jurisdiction to order further answers after 45 days].)

B. LEGAL STANDARD

“On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (§ 2033.290, subd. (a).)

The statutory authority for a motion to compel a further response to requests for admissions contains language identical with that providing for a motion to compel further response to interrogatories. (§§ 2030.300, subd. (b) and 2033.290, subd. (b).) Unlike the authority for a motion to compel further responses to production of documents, section 2033.290 does not require a showing of good cause justifying the discovery sought. (See §§ 2031.310,

subd. (b)(1) and 2033.290, subd. (b).) Based on the foregoing, while the party propounding requests for admissions may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting the request. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220-21.)

C. LEGAL DISCUSSION

The motion is DENIED as to RFA Nos. 3-4. In Opposition, JSP clarifies the specific portion of the Preliminary Statement challenged by Plaintiff, such that the Court does not find that its incorporation by reference into the responses to RFA Nos. 3-4 renders the responses meaningless, contrary to Plaintiff's assertion. (See Opposing Separate Statement, 9:4-14.) Moreover, JSP has justified the applicability of the objections asserted in response to these RFAs. (*Id.*, 8:14-9:3.) Plaintiff fails to address or dispute JSP's justification of the objections in Reply.

In light of Plaintiff's unsuccessful motion, Plaintiff's request for sanctions, made pursuant to section 2033.290, subdivision (d), is DENIED. JSP's request for sanctions, made under section 2031.210, subdivision (h) is DENIED on the grounds that JSP fails to provide any applicable authority in support of its request. As JSP acknowledges, Section 2031.210 applies to requests for document demands. The present motion concerns requests for admissions.

[2] PLAINTIFF'S MOTION TO COMPEL RESPONSES AND PRODUCTION OF DOCUMENTS RE REQUEST NOS. 11, 12, AND 13 BY JSP AMERICAN CANYON LLC; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED in part and GRANTED in part. The motion to compel JSP to produce documents in compliance with its responses to the subject document demands is GRANTED. JSP shall produce all responsive documents no later than July 31, 2026. To the extent any documents are withheld on privacy or privilege grounds in response to the subject document demands, JSP is directed to produce, simultaneously with the document production, a privilege log. The motion to compel further responses to the subject document requests is DENIED. The parties' respective requests for sanctions are DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Colt Builders Corp. ("Plaintiff") moves, pursuant to Code of Civil Procedure sections 2031.320, subdivisions (a)-(b), 2031.220, 2031.240, 2031.280, and 2031.310,

subdivision (h),⁴ for an order compelling Defendant JSP American Canyon LLC (“JSP”) to produce documents in response to Plaintiff’s Requests for Production of Documents (“RPD”) Nos. 11, 12, and 13, without preliminary or boilerplate objections. In addition, Plaintiff seeks an award of monetary sanctions in the amount of \$1,612.50 plus \$60 in court costs against JSP and its counsel, jointly and severally, for their failure to produce documents and provide code-compliant responses.

As an initial matter, it is unclear from the Notice of Motion whether Plaintiff seeks further responses to these document demands or whether it seeks compliance with JSP’s responses agreeing to produce responsive documents. A review of the Separate Statement indicates that Plaintiff seeks both.

The motion to compel further responses is untimely. Unless extended by written agreement of the parties, the deadline for a motion to compel further responses is 45 days from the service of the verified responses. (§ 2030.300, subd. (c).) The subject discovery responses were served March 10, 2026. (See Declaration of James G. Higgins (“Higgins Decl.”), ¶ 5.) Thus, the deadline to move to compel a further response thereon was April 28, 2026. (§ 2030.300, subd. (c); 1010.6, subd. (a)(3)(B).) Plaintiff’s counsel’s contention in Reply that “JSP never stated, nor was it my understanding, that there was an earlier deadline of April 28, 2026 to move to compel” does not eliminate the statutory deadline. (Reply Declaration of James G. Higgins (“Reply Higgins Decl.”), ¶ 2.)

The evidence submitted by the parties makes clear that JSP granted an extension of the deadline to move to compel only as to RPD Nos. 7-9 and 14-16. (Higgins Decl., ¶ 7, Exh. C (PDF p. 28); Declaration of Alexander (A.J.) Pinto (“Pinto Decl.”), ¶ 3.) The Court recognizes that the parties were engaged in meet and confer communications at the time the original deadline came and went. However, that fact does not obviate the statutory deadline. Counsel are tasked with seeking a written extension agreement and complying with statutory deadlines if no agreement is reached. The Court acknowledges Plaintiff’s purported confusion regarding the scope of the granted extension, and further notes that the grant of extension occurred two days after the original deadline already passed. However, as noted, the scope is clear to the Court based on the parties’ email correspondence. Plaintiff fails to state or show when it requested the extension, or the precise discovery requests contained with its extension request to support Plaintiff’s counsel’s belief that JSP’s grant of extension was to “all open discovery requests.” (Reply Higgins Decl., ¶ 2.)

The present motion was filed June 11, 2026 without a written agreement extending the statutory deadline from April 28, 2026. Thus, the motion to compel further responses to RPD Nos. 11-13 is DENIED. (*Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)* (1983) 147 Cal.App.3d 681, 685 [court lacks jurisdiction to order further answers after 45 days].)

B. LEGAL DISCUSSION

With respect to the motion to compel compliance with JSP’s agreement to produce documents, there is no statutory or jurisdictional deadline. If the responding party agrees to

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

comply with a section 2031.010 demand but then fails to do so, compliance may be compelled on appropriate motion. (§ 2031.320.) All that has to be shown is the responding party's failure to comply as agreed. (*Ibid.*; see *Standon Co., Inc. v. Sup.Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

Here, Plaintiff shows that JSP has not produced all responsive documents despite agreeing to in response to the subject document requests. (Higgins Decl., ¶¶ 6, 9.)

In Opposition, JSP implicitly concedes it has not produced all responsive documents. It responds that, upon receipt of the motion, it reached out to Plaintiff to provide a date certain for production (July 31, 2026). Plaintiff disregarded that offer and proceeded with its motion.

Based on the foregoing, the motion to compel JSP's compliance with its agreement to produce responsive documents is GRANTED. JSP shall do so by July 31, 2026.

Given the mixed success of Plaintiff's motion and JSP's opposition, the parties' competing requests for sanctions, made pursuant to section 2031.310, subdivision (h), are DENIED.

[3] PLAINTIFF'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS
RESPONSIVE TO REQUEST NOS. 7-9, 14-16 BY JSP AMERICAN CANYON LLC;
REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED in part and GRANTED in part. The motion to compel JSP to produce documents in compliance with its responses to the subject document demands is GRANTED. JSP shall produce all responsive documents no later than July 31, 2026. To the extent any documents are withheld on privacy or privilege grounds in response to the subject document demands, JSP is directed to produce, simultaneously with the document production, a privilege log. The motion to compel further responses to the subject document requests is DENIED. Plaintiff's request for sanctions is DENIED. JSP's request for sanctions is GRANTED IN PART. Plaintiff is ordered to pay to JSP, care of its attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$2,500. JSP is directed to provide notice of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Colt Builders Corp. ("Plaintiff") moves, pursuant to Code of Civil Procedure sections 2031.320, subdivision (a), 2031.220, 2031.240, 2031.320, subdivision (b) and 2031.310,

subdivision (h),⁵ for an order compelling Defendant JSP American Canyon LLC (“JSP”) to produce documents in response to Plaintiff’s Requests for Production of Documents (“RPDs”) Nos. 7, 8, 9 and 14, 15, and 16, without preliminary or boilerplate objections. In addition, Plaintiff seeks an award of monetary sanctions in the amount of \$1,612.50 plus \$60 in court costs against JSP and its counsel, jointly and severally, for their failure to produce documents and provide code-compliant responses.

As with Plaintiff’s concurrently filed motion regarding RPD Nos. 11-13, it is unclear from the Notice of Motion whether Plaintiff seeks further responses to these document demands or whether it seeks compliance with JSP’s response agreeing to produce responsive documents. A review of the Separate Statement indicates that Plaintiff seeks both.

B. LEGAL STANDARDS

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

If the responding party agrees to comply with a section 2031.010 demand but then fails to do so, compliance may be compelled on appropriate motion. (§ 2031.320.) All that has to be shown is the responding party’s failure to comply as agreed. (*Ibid.*; see *Standon Co., Inc. v. Sup.Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

C. DISCUSSION

With respect to the motion to compel further responses, Plaintiff’s Separate Statement sets forth no fact-specific showing of relevance for the RPDs. The Separate Statement repeats a single sentence that the subject “responses are chock-full of preliminary objections and boilerplate objections that render it impossible to know what JSP is actually agreeing to produce. Here, JSP fails to comply with the Discovery Act.” This is insufficient to meet Plaintiff’s burden on the motion. (See § 2031.310, subd. (b)(1) [a party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.”].) As such, the motion to compel further responses is DENIED.

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

With respect to the motion to compel JSP’s compliance, Plaintiff shows that JSP has not produced all responsive documents despite agreeing to in response to the subject document requests. (Declaration of James G. Higgins, ¶¶ 6, 9.) JSP implicitly concedes it has not produced all responsive documents. It responds in Opposition that, upon receipt of the motion, it reached out to Plaintiff to provide a date certain for production (July 31, 2026). Plaintiff disregarded that offer and proceeded with its motion.

Based on the foregoing, the motion to compel JSP’s compliance with its agreement to produce responsive documents is GRANTED. JSP shall do so by July 31, 2026.

The Court DENIES the parties’ competing requests for sanctions under section 2031.310, subdivision (h), in light of the mixed success of Plaintiff’s motion and JSP’s opposition.

JSP does not only move for sanctions under section 2031.310, but also under sections 2023.010 and 2023.020 based on Plaintiff’s failure to meet and confer regarding JSP’s purportedly deficient *supplemental* responses prior to bringing the present motion. “Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (§ 2023.020.) Here, JSP shows that, following receipt of JSP’s supplemental responses to the subject document demands on May 15, 2026, Plaintiff failed to meet and confer on the supplemental responses prior to bringing the motion. (Declaration of Alexander (A.J.) Pinto (“Pinto Decl.”) ¶ 4.) Plaintiff does not meaningfully dispute this in Reply. Plaintiff only contends that it properly met and conferred regarding the motion to compel JSP’s compliance with the production of documents, which fails to address the basis for JSP’s sanctions request.

Thus, JSP’s request for sanctions pursuant to section 2023.020 is GRANTED IN PART. The Court finds 7 combined hours preparing the opposing documents reasonable. (Pinto Decl., ¶¶ 6-7.) However, the Court does not find the hourly rate charged by counsel to be within the reasonable or customary range in the Napa County. (See Pinto Decl. at ¶¶ 7-8.) The Court reduces the hourly rates to \$300 for associate attorney McKee and \$500 for partner attorney Richmond. Based on the foregoing, Plaintiff is ordered to pay to JSP, care of its attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (5 hrs x \$300/hr + 2 hrs x \$500) = \$2,500.

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Kevin Coluccio et al v. Thomas Trainor et al

25CV001138

CROSS-DEFENDANT CALMAT CO. dba SHAMROCK MATERIAL’S DEMURRER TO
CROSS-COMPLAINT, THREE SOLES INC. dba TRAINOR BUILDERS’ CROSS-
COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to July 29, 2026, at 8:30 a.m. in
Dept. A.

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